

complaint to get around the statute of limitations issues. As such, amendment would be futile. Leave to amend is **DENIED**.

Conclusion

Based on the above, the Court rules that New Pipes' demurrer is:

- 1) **OVERRULED** as to the trespass and nuisance causes of action.
- 2) **SUSTAINED** as to the negligence cause of action.
- 3) **OVERRULED** as to the negligent undertaking cause of action.

Leave to amend is **DENIED**.

8. 9:00 AM CASE NUMBER: C25-01712

CASE NAME: CWS CONSTRUCTION GROUP, INC. VS. AHS CUSTOM METALS, INC.,

***HEARING ON MOTION IN RE: FOR RELEASE OF FUNDS DEPOSITED WITH THE CLERK OF THE COURT
FILED BY: CWS CONSTRUCTION GROUP, INC.**

TENTATIVE RULING:

On April 7, 2026, Plaintiff and Cross-Defendant CWS Construction Group, Inc. ("CWS") filed a Motion for Release of Funds Deposited with the Clerk of the Court (the "Motion for Release of Funds"). The Motion for Release of Funds was set for hearing on August 17, 2026. The motion is unopposed

Background

As set forth in the Motion for Release of Funds, the sum of \$7,500.00 (the "Deposited Funds") was deposited with the Court by American Contractors Indemnity Company ("ACIC"). See Notice of Deposit filed May 28, 2026. The Deposited Funds represent payment of ACIC's license bond issued to defendant AHS Custom Metals, Inc. ("AHS").

Analysis

The motion is unopposed and no further filings have been made by any party or third party. No other claims have been filed or otherwise presented before the Court with respect to the Deposited Funds.

Disposition

The Court finds and rules as follows:

1. Motion for Release of Funds is GRANTED.
2. A proposed form of order was lodged with the Court which the Court shall execute and enter.

9. 9:00 AM CASE NUMBER: C25-03333

CASE NAME: YESENIA RICO VS. JANE WANG

HEARING ON DEMURRER TO: CROSS-COMPLAINT

FILED BY:

TENTATIVE RULING:

The Demurrer to Cross-Complaint is **OFF CALENDAR**. Cross-Complainant filed a First Amended Cross-Complaint filed on July 30, 2026.